

26STCV10152 26STCV10152

County: los-angeles

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Case Number: 26STCV10152 Hearing Date: August 17, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

REEL

WEST INC.,

Plaintiff,

vs.

DAMON

HARRIS, et al.,

Defendants.

Case No.:

26STCV10152

Hearing

Date:

August 17,

2026

ORDER

OVERRULLING DEMURRER TO COMPLAINT

I. BACKGROUND

Plaintiff

Reel West Inc. ("RW"), possessor of a junior lien over 5319 Tendilla Avenue, Woodland Hills, California 91364 (the "subject property"), brought this action against Defendants to quiet title over the subject property due an allegedly defective promissory note and deed of trust that purport to encumber the subject property in the senior position. RW sued Defendants for declaratory relief, quiet title, and cancelation of instrument.

On

July 2, 2026, Defendant Provident Trust Group FBO Heather Glaser Roth IRA ("Provident") filed the instant demurrer. RW filed an opposition. Provident filed a reply.

II. LEGAL STANDARD

Code of Civil Procedure section 430.10[1]

states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, uncertain includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As a general matter, in a demurrer

proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian

v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not

the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

III. DISCUSSION

Provident requests the Court sustain the demurrer as to all causes of action against Provident as the causes of action are not sufficiently pled and RW has no standing.

A. Timing

The Court first acknowledges this demurrer is untimely. It is undisputed the complaint was served on Provident on May 7, 2026. A demurrer must be filed within 30 days of service of the complaint. (§ 430.40, subd. (a).) Therefore, any responsive pleading was due by June 6, 2026.

If parties are unable to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party may file and serve, on or before the date the pleading is due, a declaration attesting that a good faith attempt to meet and confer was made and explaining the reasons why parties could not meet and confer. (§ 430.41, subd. (a)(2).) Only upon filing of this declaration will the Court extend the time to file a responsive pleading an additional 30 days.

Provident's counsel did not attempt to meet

and confer with RW's counsel until June 5, 2026—four days after the meet and confer deadline. (Mot., Forry Decl. ¶ 4, Ex. 1.) At no point did Provident file a declaration on or prior to the demurrer deadline, granting an automatic extension to file the demurrer. Provident did not file any declaration until filing the demurrer on July 6, 2026, 30 days after the demurrer and/or extension were due.

Despite the fact the demurrer is untimely,
the Court rules on the merits.

B. Allegations of the Complaint

The complaint alleges RW has a junior lien on the subject property, identified by address and lot, as the beneficiary of a recorded deed of trust. (OC ¶¶ 1, 8.) Defendants Damon Harris ("Damon"), Lorena Harris ("Lorena"), Barbara Ann Schilling ("Schilling"), and Provident claim interests in the property as beneficiaries under a promissory note secured by a deed of trust. (OC ¶¶ 2-4.) Defendant SBS Trust Deed Network ("SBS") acted as trustee under the deed of trust securing the obligation and is named solely to the extent it claims any interest affecting title. (OC ¶ 5.)

RW alleges the promissory note and deed of trust that purport to encumber the subject property in the senior position are defective, in part because it fails to clearly identify any legally cognizable beneficiary or authorized party entitled to enforce the obligation. (OC ¶¶ 10-12, 17, Exs. B and B1.) The Deed of Trust identifies multiple beneficiaries but also identifies 'beneficiary' as any holder of the note, regardless of name. (OC ¶ 19.) The loan documents do not designate any agent, trustee, representative, servicer, or other authorized person to act on behalf of all interest holders or establish any process to bind one another. (OC ¶ 22.) RW asserts this makes the loan documents, in their current form, not presently enforceable as a lien against the property. (OC ¶ 26.)

RW moves for declaratory relief, quiet title, and cancellation of instrument to obtain a judicial declaration as to the bounds of the loan documents, Defendants' authority and interests, rights of any beneficiaries, and the validity of the deed of trust. (OC ¶¶ 44, 53, 62.)

B. Declaratory

Relief

Provident requests the

Court sustain the demurrer as to the cause of action for declaratory relief, in part, because it is unduly cumulative of the other two causes of action, and, in part, because RW has no alleged right or interest arising from the note encumbering the property, and therefore has no standing. The Court finds both of these arguments without merit.

First, the Court notes RW

has standing to bring this action. Under section 1060, any person interested under a written instrument who desires a declaration of their rights and/or duties with respect to a property may, in cases of actual controversy relating to the legal rights and duties, bring an action for declaratory relief. As RW has brought an action concerning a controversy relating to the legal rights and duties stemming from a written instrument giving RW rights over a certain piece of property, RW facially has standing to bring a claim for declaratory relief.

The Court also does not

find it improperly cumulative or superfluous. The action for declaratory relief clearly seeks to outline the rights of all parties associated with the subject property and associated loan documents. (OC ¶ 44.) The claim for quiet title seeks to deem the deed of trust facially invalid and deem Defendants to have no enforceable interest. (OC ¶ 53.) These are separate issues being addressed by each cause of action, rather than each “fully engag[ing with] other causes of action.” (Hood v. Superior Court (1995) 33 Cal.App.4th 319, 324.) The cause of action for declaratory relief is not subject to demurrer.

C. Quiet

Title

Provident argues RW's quiet title action is subject to

demurrer as it does not seek a determination and declaration of rights in the property as they existed at the time the action was filed. In support of this argument, Provident appears to rely upon *Lechuza Villas West v. California Coastal Commission* (1997) 60 Cal.App.4th 218, 243, which held “[a] description of the parties' legal interests in real property is all that can be

expected of a judgment in an action to quiet title.” Provident argues RW is requesting something beyond the bounds of quiet title, instead asking the Court to change the parties’ interests in the property by eliminating Defendants’ existing senior lien.

Lechuza is not analogous. In *Lechuza*, the plaintiff was seeking to establish title over an ambulatory boundary between the property and the sea, “which, because it is bordered by the ocean and is subject to seasonal accretion and erosion, belongs sometimes to the state and sometimes to *Lechuza*[.],” which could not be accomplished by an action to quiet title. (*Ibid.*) Here, RW is only concerned with ownership and rights over property RW has claim to—the mere fact RW is asserting Defendants do not have valid claims to the property does not make this not a valid claim to quiet title.

The Court overrules the demurrer on this basis.

D. Cancellation of Instrument

Provident finally argues the third cause of action should be subject to demur as RW does not have a valid claim to quiet title, as cancellation of instrument is not a standalone claim, and did not cite to Civil Code section 3412. (*Faunce v. Cate* (2013) 222 Cal.App.4th 166, 173.)

Both of these arguments are without merit. As addressed previously, RW has presented a valid claim as to the cause of action for quiet title. RW’s third cause of action also specifically cites to Civil Code section 3412.

The complaint is sufficiently pled. The Court overrules the demurrer, in full.

IV. CONCLUSION

Defendant Provident Trust Group FBO Heather Glaser Roth IRA’s demurrer to the entire complaint is OVERRULED.

RW is ordered to give notice.

DATED:

August 17, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.